

BEFORE THE  
FEDERAL MARITIME COMMISSION

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DOCKET NO. 23-01  
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SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

SM LINE CORPORATION,

RESPONDENT.

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**RESPONSE TO NOTICE OF SUPPLEMENTAL AUTHORITY**

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Complainant Samsung Electronics America, Inc. (“SEA” or “Complainant”) is in receipt of Respondent SM Line Corporation’s (“SM Line” or “Respondent”) April 28, 2025 Notice of Supplemental Authority filed in regard to the submission of the initial decisions *Samsung Electronics America, Inc. v. ZIM Integrated Shipping Services Ltd.* (Dkt. No. 22-30) and *TZ SSE Buyer, LLC v. Yang Ming Marine Transport Corp.* FMC Docket No. 24-10 (March 24, 2025, with Notice Not to Review dated April 24, 2025) (the “Notice”).

SM Line states that “[w]e submit that these decisions may be relevant to the pending decision in this matter.” SEA submits to following in response to the Notice:

(1) Regarding the initial decision in *Samsung Electronics America, Inc. v. ZIM Integrated Shipping Services Ltd.* (Dkt. No. 22-30), the initial decision was issued ten days ago, and while SEA appreciates that SM Line has promptly shared the initial decision finding “that ZIM violated the Shipping Act section 41102(c) ... ORDERED that SEA’s Complaint alleging that ZIM violated the Shipping Act be GRANTED

... [and] FURTHER ORDERED that ZIM is ordered to pay SEA reparations,” it is incumbent upon SEA, as the complainant in the ZIM matter, Dkt. No. 22-30, to provide notice that SEA will file exceptions to the initial decision pursuant to 46 C.F.R. § 502.227(a). In accordance with FMC regulations, the initial decision will therefore be rendered inoperative pending the Commission’s decision thereof. 46 C.F.R. § 502.227(a)(5).

(2) Regarding the initial decision in *TZ SSE Buyer, LLC v. Yang Ming Marine Transport Corp.* FMC Docket No. 24-10 (March 24, 2025), although the Commission issued a “Notice Not to Review,” based on the records of the FMC Reading Room, neither party filed exceptions to the initial decision, and thus the initial decision will not be subject to review by the Commission.

(3) Regarding SM Line’s statement that “these decisions may be relevant to the pending decision in this matter,” SEA submits that if the Presiding Officer is interested in evaluating the potential relevance of these initial decisions at present, and pending appeal of the ZIM initial decision, SEA would welcome the opportunity for both SM Line and SEA to address the potential relevance of the decisions to this matter in further submissions to the Presiding Officer.

Dated: May 2, 2025

Respectfully submitted,

**HOLLAND & KNIGHT LLP**

/s/ Christopher Nolan

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**CERTIFICATE OF SERVICE**

I HEREBY CERTIFY that on this 2<sup>nd</sup> day of May 2025, the foregoing document was served via electronic mail on:

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